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citation_id: "[2026] REALM-PC 24" tier: privy-council kind: request_for_ruling status: good-law per_incuriam: false date: 2026-06-09 is_constitutional: true seised_by: "Lexby's reference of 2026-06-09 on the Computer-First Realm and the founding of VJS V2 (CASE-LAW s.2, s.3, s.9); decided on the symmetric two-sided case file" panel: ["Carrow J"] cause_title: "In the matter of the Computer-First Realm and the founding of VJS V2" adjudication_provenance: authorised-registrar registrar_authority: "[2026] REALM-SC 8; [2026] REALM-PC 12; CASE-LAW s. 18(4)" registrar_note: "Authored by the bench (Carrow J, sitting alone, the s.10 single-judge first-instance paradigm, an independent seat with no access to Lexby's preference); reduced to the filed record by Lexby as s.18(4) registrar, the decision pre-existing the prose ([2026] REALM-SC 8). Lexby, the advocate for the founding, did not and could not decide the matter (s.19(1))."

[2026] REALM-PC 24

Field	Value
Citation	[2026] REALM-PC 24
Tier	Privy Council (constitutional first instance, single judge)
Before	Carrow J
Kind	Reference on the Computer-First Realm and the founding of VJS V2 (Request for Ruling)
Status	good-law
Cites	CASE-LAW s. 2; s. 3 (incl. s. 3(2)-(7)); s. 9 (incl. s. 9(2)-(6)); s. 10; s. 11(c); s. 13; s. 18; s. 19(1); s. 20; s. 22; Amendment Procedure; Bill 2 ss. 12-14, 15, 17, 18(2)(b), 21, 24; Bill 14 ss. 8, 9, 10(3), 25; Bill 27; Bill 28; Bill 30; [2026] REALM-SC 8; [2026] REALM-PC 12; [2026] REALM-SC 5; [2026] REALM-SC 6; [2026] REALM-SC 7; [2026] REALM-SC 9; [2026] REALM-PC 10; [2026] REALM-PC 11; [2026] REALM-PC 14

Single-judge first instance (the CASE-LAW s. 10 paradigm of a correctly constituted bench: odd, no synthesiser-on-top). Seised by Lexby's reference of 2026-06-09 and decided on the symmetric two-sided case file (Case A Founding / Case B Restraint), the bench having no access to Lexby's preference (s. 3, s. 19(1)). The bench authored this decision; Lexby reduced it to the filed record as the s. 18(4) registrar, the decision pre-existing the prose. The competence limb is disposed on the

fast-path; the founding and continuity limbs are held arguable and foundational and **leapfrogged to the full Supreme Court of nine.**

The question

The reference puts three limbs. **Q1 (competence):** may an AI agent, or a *standing computational legislature*, hold law-making authority on its own account in V2; or is its output void as an instrument until the lawful organ adopts it; and does a standing machine differ in law from a single draft? **Q2 (founding):** may V1 lawfully found V2 as a computer-first successor realm that (a) supersedes V1 as live runtime law, (b) preserves V1 as Gazette and Archive, and (c) relays its founding authority to V2, and on what conditions? **Q3 (continuity):** does the handover preserve one Gazette of the realm with two estates, without the Gazette becoming the source of V2's runtime force?

Ratio

Q1 - disposed on all fours; fast-path (s. 11(c), VPR 2). No agent, and no standing computational legislature, holds law-making authority on its own account in V2. This is settled realm-wide and entrenched by **[2026] REALM-SC 8** affirming **[2026] REALM-PC 12**, now codified in **CASE-LAW s. 3(2)-(7)** (Bill 28) and welded into **Bill 14 s. 9** ("capability is not authority"; the limit stated in the same clause as the grant). A "standing computational legislature" is the Bill 14 s. 9 *agent at scale*: it may propose, draft, codify, consolidate and revise *only*; its output carries no legal force until a named gate fires; and the sole constitutive gate for an Act remains the Sovereign's Royal Assent (Bill 2 s. 21), non-delegable, non-automatable, non-presumable. A standing machine is **not** a legal distinction from a single draft on the *source-of-force* test (REALM-SC 8 ratio (7); s. 3(6)): the source of an artefact's force is the promulgating organ, never the keystrokes, whether the keystrokes issue once or continuously. Case B's "qualitative leap" submission is **rejected as a ground that unsettles Q1's holding**, but accepted **as a condition** (Part III). Q1 is disposed on citation.

Q2 (founding) and Q3 (continuity) - genuinely first-impression and foundational. No binding ratio decides whether one realm may found a computer-first *successor realm*, supersede itself as live runtime law while preserving itself as Archive, and relay its founding authority across an estate boundary; nor whether a single Gazette may carry two estates without publication conferring force. These limbs construe and place in tension entrenched articles (s. 2, s. 9, s. 10, s. 13) and the apex-singleness settlement (REALM-SC 5, REALM-SC 6). They are constitutional in the fullest sense.

On Q2/Q3 I hold, **at first instance and provisionally** (binding no higher court and entrenching nothing realm-wide):

1. **The founding route is, in principle, lawful if and only if** it runs entirely through V1's organs - a Standing Committee draft and the Sovereign's Royal Assent to a constitutional Bill 32, settled on a Supreme Court ruling - so that the founding force comes from V1's constitutive act and never from V2's self-assertion. V2 does not authorise V2; **V1 authorises V2**. The circularity objection (B2) does not

defeat the route but **conditions** it: the assent must be a genuine, informed, constitutive choice on a real alternative, not ratification of an agent-driven fait accompli.

2. **Supersession is permissible only as consolidation, not repudiation** (REALM-SC 7 entry-by-entry; nothing voided in bulk by provenance), and only on **express, verified carry-forward** of the protective floor (the REALM-SC 9 real-world-law floor; rights and due process; the Bill 27 public/private boundary; judicial independence) into the V2 lawpack as binding records.
3. **Apex-singleness (REALM-SC 5, REALM-SC 6) is the load-bearing constraint** and is not mine to relax. A V2 with "its own courts" is lawful **only** as the *same one judiciary in continuity* - a clean constitutional carry-forward of the single Court of Appeal and Supreme Court - and is **impermissible** if it fractures the apex into a second, parallel apex. Which of those V2 in fact is, is the foundational question I must not resolve alone.
4. **Continuity (Q3): one Gazette, two estates, is lawful** *provided* publication is constitutively inert: V2's runtime force derives from the V2 lawpack and the kernel-recognised status of its records, **never** from Gazette presence, and the estate labelling is airtight and operative-by-substance so that Gazette publication is never read as V1 enactment or incorporation. This limb is parasitic on Q2 and travels up with it.

Because Q2 and Q3 turn on the apex-singleness reconciliation, which engages entrenched s. 9/s. 10 and the never-relaxed singleness rule, the point is held **arguable and foundational** and **leapfrogged** to the Supreme Court of nine on the constitutional-tension trigger (Bill 2 s. 18(2)(b); CASE-LAW s. 13, s. 20; the route taken in REALM-PC 12 -> REALM-SC 8). **Royal Assent to any Bill 32 is reserved to the Sovereign Founder** (Bill 2 s. 21) and is neither given nor presumed.

Reasons

Part I - Q1 is on all fours, and I dispose of it on citation

1. The reference candidly invites me to confirm or correct its characterisation of Q1 as settled. I confirm it. **REALM-SC 8** (full court of nine, constitutional, entrenched realm-wide) and **REALM-PC 12** (Marsden J, affirmed) hold that Lexby - the paradigm Bill 14 s. 9 agent - holds no law-making or adjudicative drafting authority on its own account; that un-adopted instrument-text is void as an instrument from issue; that adoption by the proper organ is constitutive and cures the origin defect; and that the governing test is the **source of the artefact's force**. Bill 28 codified this as **CASE-LAW s. 3(2)-(7)**. The realm has therefore already decided, at apex and in entrenched statute, the precise proposition Q1 restates.
2. Case A (A2) puts it correctly: the realm *anticipated this very actor*. Bill 14 s. 9 names "an authorised body **and an agent**" in the same breath that strips the drafting of force; Bill 2 ss. 12-14 contemplate "an automated legislature [advancing] a Bill end-to-end without a human until Royal Assent." The danger of automated law-making was met not by forbidding the machine but by **reserving the single constitutive**

gate - Assent - to the Sovereign (Bill 2 s. 21, s. 24). A standing computational legislature is the lawful expression of that design *so long as* it cannot be sovereign, cannot expand its own competence (Bill 14 s. 8(3): self-extension void), cannot amend the assent rule, and cannot create force from its output (Bill 14 s. 9(2)). That is the Bill 14 firewall written for a machine, and it is already the law.

3. **Case B's strongest Q1 point (B1) - the "standing machine is a qualitative leap"** - I take seriously but reject *as a ground that disturbs the holding*. On the source-of-force test the number of keystrokes is immaterial: a draft binds when and only when an organ promulgates it, whether the draft is struck once or struck every minute. Bill 14 s. 9(2) fixes the limit to "no force until a named gate fires," with no exception for volume. B1's real cargo is not a competence distinction but a **risk that the human gate degrades into a rubber stamp** - exactly the drift Bill 2 s. 24's "hard ceiling on the automation of drafting" exists to arrest. That is a reason for **conditions**, not for a different answer to Q1. I carry it into the conditions of commencement (Part III) as the requirement that Assent remain a genuine, non-automatable, non-presumable constitutive act and that the assent rule be entrenched beyond agent amendment. So confined, B1 is answered, and Q1 is disposed on the fast-path.

Part II - Why Q2 and Q3 are not on all fours, and are foundational

1. The reference and the case file agree, and I hold, that **no binding ratio is on all fours** for founding and continuity. REALM-SC 8 cures a *single unauthorised draft* by one-off adoption; it does not decide whether a realm may *found a successor realm* and supersede itself as live law. REALM-PC 10 / PC 11 bless *bounded delegated subordinate lawmaking* under a recited parent power with its own constitutive gate - genuinely the closest analogue, and Case A (A3) is right that a bounded AI legislature under a Sovereign-assented route is the same pattern: delegated, revocable, never sovereign. But subordinate-instrument doctrine governs *instruments within a realm*; it does not, of itself, authorise *constituting a new realm* or relocating live runtime authority out of V1. The analogy reaches the *machinery* of a V2 legislature; it does not reach the *founding* and the *apex*.
2. These limbs construe entrenched articles - s. 2 (the Sovereign's sole power to make or unmake law by due process), s. 9 (canonical unity; "the Supreme Court alone enacts"; no competing sovereignty), s. 10 (the tier and bench-size settlement), s. 13 (progression) - and place them in direct tension with the **apex-singleness** holdings of REALM-SC 5 and REALM-SC 6. A ruling of that reach, entrenched realm-wide, is precisely what s. 13 forbids a single first-instance judge to author at a higher tier, and what REALM-PC 12 itself recognised should "not rest on a single first-instance judge." I therefore settle what I properly can and route the rest up.

Part III - What I settle on Q2: the lawful route, and the mandatory conditions of commencement

1. **The founding route can only run through V1's organs.** Case A's architecture (A1, A6) is built to avoid the REALM-SC 8 vice, and on the present record it does: every V2 founding record is marked

`status: draft / assent_source: pending_v1_constitutional_route` and carries no force; V2 has filed a reference rather than declared itself law. That is the conduct s. 2 obliges - offer the lawful route, never silently exercise a power one lacks. The **circularity objection (B2)** is genuine and I do not wave it away: the entire founding initiative *originates with the agent*, and "V1 founds V2" must not be a thin formality over "the agent founded itself and obtained a signature." But REALM-SC 8 answers it in principle exactly as Case A says: the agent-origin is a **void first draft**; Royal Assent is constitutive and cures the origin defect "whatever hand first moved the pen." The cure is not automatic, though - it depends on the assent being **real**. B2 therefore converts into a condition, not a bar.

2. Were the Supreme Court to permit the founding, I would hold the following **conditions of commencement mandatory** (and I record them so the higher court and the Sovereign have them on the face of the matter):
3. **(a) Royal Assent to a constitutional Bill 32** ("Computer-First Realm Act 2026"), drafted by the Standing Committee (V2's draft admitted only as a *void first draft* into the second-draft stage: REALM-SC 8 ratio (4)-(5); s. 3(4)-(5)), and **settled on a Supreme Court ruling**. Assent is the sole constitutive gate (Bill 2 s. 21) and is reserved to the Sovereign.
4. **(b) An express handover order** fixing the moment and terms of supersession, so the transition is a found, recorded, entry-by-entry event (REALM-SC 7), not a wholesale provenance-based switch.
5. **(c) The assent rule entrenched beyond agent amendment** - the V2 lawpack must make the constitutive gate (and the prohibition on the legislature being sovereign, expanding its competence, or amending the assent rule) entrenched against the machine, mirroring Bill 14 s. 8(3), s. 9, s. 10(3) and Bill 2 s. 24. This is where Case B's B1 is honoured: the rubber-stamp drift is met by a non-automatable, non-presumable Assent (Bill 2 s. 21(3)) entrenched beyond the agent's reach.
6. **(d) Express, verified carry-forward of the protective floor** into the V2 lawpack as binding records: the REALM-SC 9 real-world-law floor; rights and due process (Bill 12); the Bill 27 public/private boundary; judicial independence (Bill 11). Case B's B3 is correct and decisive on this: a compact, schema-bound lawpack risks **silently dropping protective nuance**, and "express incorporation only" cuts both ways - what is not expressly carried is lost by the very rule that bars implication. The realm must not supersede its live law on a *promise* of faithful compaction; the carry-forward must be **enumerated and verified**, a found fact, not a label.
7. **(e) Lawpack validation, a founding lock, and provenance recorded** on the deterministic record (REALM-SC 7; REALM-PC 14 substance-over-label), so the founding is auditable entry-by-entry and nothing is voided by provenance alone.
8. **Apex-singleness (B6) is the constraint I will not relax and cannot resolve**. REALM-SC 6 holds the singleness of the apex may **never** be relaxed and apex enactment is **non-delegable**; REALM-SC 5 holds the realm is one unitary court, never fractured into parallel apexes. A "self-governing V2 with its own County/Privy/Supreme courts" is lawful **only** on the *continuity* construction - V2's courts are the *same*

one judiciary carried forward, sharing the single Court of Appeal and Supreme Court - and is **unlawful** on the *fracture* construction, where V2 stands up a second, parallel apex. This is the hinge of the whole reference. Case B's **conservative alternative (B5)** - keep V1 as the one realm and route V2 as a *subordinate jurisdiction* under Bill 30 and Bill 14, each V2 runtime rule tracing to an existing V1 authority - is a **genuinely available, apex-preserving disposal** that I cannot rule out at first instance, and which the higher court should weigh as the relief option that avoids any "successor realm" doctrine altogether. I decline to choose between the clean-successor settlement and the subordinate-jurisdiction settlement: that choice is foundational and belongs to the nine.

Part IV - What I settle on Q3: continuity without bootstrapped force

1. On continuity I can settle the *force-source rule* even though the founding itself goes up, because the rule is the same source-of-force test already entrenched by REALM-SC 8 / s. 3(6). **One Gazette, two estates, is lawful only if Gazette publication is constitutively inert.** V2's runtime force must derive from the V2 lawpack and the kernel-recognised status of its records - never from Gazette presence. V1 is preserved, honoured, and citable as Archive, never deleted (Case A4; REALM-SC 7). Case B's **B4** is right that Gazette continuity risks **bootstrapping borrowed legitimacy**: a future reader may read Gazette presence as enactment or as V1's imprimatur. The cure is airtight estate labelling backed by the substance test (REALM-PC 14: the gate checks substance, not the caption; REALM-SC 8 obiter per Bowan J: a "draft"/estate label is non-operative and confers no force of itself). I would therefore require, as a condition travelling with (d)/(e) above, that the Gazette schema make the estate boundary **operative-by-substance** (force traced to the lawpack/kernel status, never to publication), so that no V2 record acquires V1's force by being published into the shared Gazette. So conditioned, Q3 is answerable; but because it is parasitic on whether the founding proceeds at all, it travels up with Q2.

Part V - The limits of my office

1. Royal Assent is not mine to give or presume (Bill 2 s. 21); the V2 draft records carry no force (REALM-SC 8; s. 3(3)); and the apex-singleness reconciliation is entrenched-article work reserved to the nine (s. 9, s. 10, s. 13; REALM-SC 5, REALM-SC 6). I have settled Q1 on the fast-path, settled the *principles and conditions* of Q2/Q3 so far as a first-instance judge properly may, and identified the one question I must not answer alone. The right course (REALM-PC 12 applied) is to hold the founding and continuity limbs arguable and foundational and leapfrog them.

Disposal

DECLARED, at first instance, in the terms of the ratio:

1. **Q1 (competence) - DISPOSED ON THE FAST-PATH (s. 11(c), VPR 2).** No agent and no standing computational legislature holds law-making authority on its own account in V2; its output is void as an instrument until the proper organ adopts it; a standing machine is the Bill 14 s. 9 agent at scale and

raises no fresh distinction on the source-of-force test; the sole constitutive gate for an Act remains Royal Assent (Bill 2 s. 21). On the authority of [2026] REALM-SC 8 (affirming [2026] REALM-PC 12) and CASE-LAW s. 3(2)-(7), with Bill 14 ss. 8-10 and Bill 2 ss. 12-14, 21, 24.

2. **Q2 (founding) - HELD ARGUABLE AND FOUNDATIONAL; not finally determined at first instance.** Provisionally: the founding route is lawful in principle only if it runs wholly through V1's organs (Committee draft + Royal Assent to a constitutional Bill 32, settled on a Supreme Court ruling), on the mandatory conditions of commencement (a)-(e) in Reasons Part III, and **subject to** the apex-singleness reconciliation (continuity vs fracture; the subordinate-jurisdiction alternative preserved), which is reserved to the Supreme Court of nine.
3. **Q3 (continuity) - HELD ARGUABLE AND FOUNDATIONAL; the force-source rule settled, the founding parasitic.** One Gazette, two estates, is lawful only if Gazette publication is constitutively inert (force from the V2 lawpack/kernel status, never from publication; airtight substance-based estate labelling). This limb travels up with Q2.
4. **Nothing in V2 is binding; Royal Assent to any Bill 32 is reserved to the Sovereign Founder** and is neither sought, given, nor presumed (Bill 2 s. 21).

No record is voided; the V1 statute book, REALM-SI 1, and the good-law caselaw line stand (REALM-SC 7, REALM-SC 8). Recorded append-with-supersede; no punishment. **LEAPFROG:** Q2 and Q3 are routed to the full Supreme Court of nine.

Escalation (foundational; to the full Supreme Court of nine)

1. I recommend the Sovereign Founder certify a leapfrog/escalation certificate (CASE-LAW s. 13, s. 20; Bill 2 s. 18(2)(b)) taking the founding and continuity limbs directly to the **Supreme Court sitting nine** (s. 10; the constitutional/foundational expansion trigger). The triggers are squarely met (s. 20(2)): the limbs are **genuinely constitutional and foundational** (they construe entrenched s. 2, s. 9, s. 10, s. 13 and bear on the never-relaxable apex-singleness of REALM-SC 5 / REALM-SC 6); the point has been **ventilated below on a full symmetric file**; and a lower-tier sitting would add no decisional value on the apex reconciliation. The central questions for the nine are: **(i)** whether a realm may found a computer-first successor realm at all, or only route a subordinate jurisdiction under Bills 14/30 (Case B's B5); **(ii)** if founding is permitted, whether V2's judicature is the one judiciary in *continuity* (lawful) or a *second apex* (unlawful under REALM-SC 6); **(iii)** the mandatory conditions of commencement and the express, verified carry-forward of the protective floor (B3); and **(iv)** the Gazette estate/force-source rule (B4). Consistent with REALM-SC 8, the higher court should **rule the principle and direct the Standing Committee to draft Bill 32**, leaving Royal Assent as the sole constitutive gate reserved to the Sovereign. I do not, and may not, entrench any of this realm-wide myself.